FORM NO. 35
[See rule 45]
Appeal to the Joint Commissioner (Appeals) or the Commissioner of Income Tax (Appeals)

Order against which Appeal is filed :

1. Assessment year in connection with which the appeal is filed/ Previous year in case appeal is filed against an order where assessment year is not applicable	2017-18
2. Section and sub-section of the Income-tax Act, 1961 under which the order appealed against was passed	147 r.w.s. 144B
3. Date of order appealed against / Date of service of the order	29/03/2022 / 30/03/2022
4. Whether an appeal in relation to any other assessment year/ order is pending before the Joint Commissioner (Appeals) or Commissioner (Appeals)	No

Appeal Details :

5. Section and sub-section of the Income-tax Act, 1961 under which the appeal is filed	246A(1)(a)
6. If appeal relates to any assessment / reassessment	Yes
(a) Total Addition to Income (in Rs.)	Rs. 26,00,000
(b) In case of loss, total disallowance of loss in assessment (in Rs.)	-
(c) Amount of Addition/Disallowance of loss disputed in Appeal (in Rs.)	Rs. 26,00,000
7. If appeal relates to penalty:	No
(a) Amount of penalty disputed in Appeal (in Rs.)	-
8. If appeal relates to any other order, the amount disputed (in Rs.)	-
9. In case of an appeal against an order of assessment for the assessment year in connection with which the appeal is filed, whether tax due on returned income as per section 249(4)(b) of the Income-tax Act, 1961 has been paid	Yes
10. If the appeal relates to any tax deducted under section 195 of the Income-tax Act, 1961, whether tax was deducted under section 195(1)	No

Statement of facts, Grounds of Appeal and additional evidence :

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11. Statement of Facts	The appellant is an individual deriving income from agriculture. The return of income for A.Y. 2017-18 was filed declaring total income of Rs.3,85,000/-. In response to a notice received u/s 142(1) the appellant could not furnish the details in time. The AO passed the order u/s 147 r.w.s. 144B making total addition Rs.26,00,000/- (additions on account of investment in immovable property and time deposits) u/s 69 of the Income-tax Act, 1961.
12. Whether the appellant wishes to file additional evidence under rule 46A	No

13. Grounds of Appeal (each ground not exceeding 3000 characters)

Sr. No.	Relevant section (s) of IT/ IT Rules	Issue	Ground of Appeal
1	147, 69	Assessment of Income Rs. 29,85,000	GROUNDS OF APPEAL The appellant received order u/s 147 read with section 144B of the Income-tax Act, 1961. Grounds of Appeal before the CIT(A) are as under: 1. Addition u/s 69 of Rs.18,60,000/- on account of investment in immovable property is unjustified. The investment was made out of loans received from family members through banking channels, and their confirmations and bank statements were available with the appellant. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. The AO did not consider the explanation of the appellant and the documents available with him. 2. Addition u/s 69 of Rs.7,40,000/- on account of

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Sr. No.	Relevant section (s) of IT/ IT Rules	Issue	Ground of Appeal
			time deposit is unjustified. The time deposits were made out of agricultural income disclosed in the return of income for earlier years. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. The agricultural income is supported by sale bills of the produce and the land records. 3. The AO erred in treating the total addition of Rs.26,00,000/- u/s 69 as unexplained investment and in taxing it u/s 115BBE. 4. The appellant craves leave to add, alter or amend the above Ground of Appeal.

Appeal Filing details :

14. Whether there is delay in filing appeal	No
15. If reply to 14 is Yes, state the grounds for condonation of delay (not exceeding 3000 characters)	-
16. Details of Appeal Fees Paid	BSR Code 0000000, Challan No. 00000 (fictitious), Rs. 1,000
17. Whether any application for stay of demand has been made	No

Verification: I, Shri Kalpit Udaharan, the appellant, do hereby declare that what is stated above is true to the best of my information and belief.

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